**SUTHERLAND LOGISTICS LIMITED v VANTAGE FREIGHT SOLUTIONS LIMITED**

Claim No. CC-2025-LON-000389

# ADVICE ON MERITS AND QUANTUM

(Privileged and Confidential - prepared for the Claimant's solicitors)

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## Introduction

1. I am asked to advise Sutherland Logistics Limited ("the Claimant") on the merits of its claim against Vantage Freight Solutions Limited ("the Defendant") and on quantum, in light of the Defence served on 15 December 2025. I have been provided with the Logistics Services Agreement, the disputed invoices, the termination correspondence and the Claimant's management accounts.

## The debt claim

2. The claim for the unpaid February to April 2025 invoices (£487,250) is, in my view, strong. The sums were invoiced under a clear contractual charging mechanism, the Defendant admits the invoices were issued and unpaid, and no contemporaneous dispute about the sums was ever raised. The Defendant's reliance on an unparticularised set-off is unpromising: it has pleaded no particulars of the alleged service failures and the documents suggest service levels were consistently met.

## The termination claim

3. The Defendant's primary case - an entitlement to terminate "for convenience" on 30 days' notice - is, on the face of the Agreement, untenable. Clause 13.1 is clear that during the initial term the Agreement may be terminated only for unremedied material breach or insolvency. The Defendant's alternative case of a variation by conduct will require it to identify clear words or conduct evidencing agreement to vary; I have seen nothing to support it.

4. The real battleground is the allegation of material service failures said to justify termination. That allegation is presently unparticularised and appears to have been raised for the first time in the Defence. The Claimant's performance reports show on-time despatch above 98.5% and pick accuracy above 99.7% throughout, and no service credits were ever levied. The Defendant should be pressed for particulars, and disclosure on this issue (Model D) is likely to be decisive.

## Quantum and mitigation

5. The damages claim is methodologically orthodox: the Claimant is entitled to be put in the position it would have been in had the contract run to 11 January 2026. The guaranteed minimum charge mechanism makes the calculation relatively straightforward. The Claimant must, however, give full credit for mitigation, and I would expect the Defendant to focus its fire here. The Schedule of Loss gives credit for the redeployed vehicles and the Halcyon replacement income; provided that evidence holds up, the net figure of £612,000 is defensible.

## Overall assessment

6. In my opinion the Claimant has good prospects of success on both the debt and the termination claims. I would put prospects on the debt at around 80% and on the termination claim at around 70%, the principal risk being the service-failure allegation if it is properly particularised and supported. I would recommend an early application for summary judgment, alternatively an interim payment, in respect of the debt claim, where the Defendant's pleaded answer is weak.

7. I am happy to discuss this advice in conference.

**HARRIET STANFORD**

Eldon Chambers, London | 5 January 2026